



Bill Number: S.B. 1632

Werner Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Expands the credentialing deficiency correction process to apply to any applicant, rather than only qualified vendors.
2. Grants the Department of Economic Security (DES) 14 business days after denying a corrected credentialing application to initiate a contract before an applicant may appeal the decision through the statutory administrative hearings and appeals process.
3. Requires DES to adopt rules to implement the credentialing deficiency correction process by June 30, 2027.

WERNER FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1632
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 14, article 1, Arizona Revised
3 Statutes, is amended by adding section 41-1971, to read:

4 41-1971. Credentialing applications; developmental
5 disabilities services; deficiencies; denial;
6 appeal; rules; definition

7 A. ~~[NOTWITHSTANDING ANY OTHER LAW,]~~ IF THE DEPARTMENT DENIES ~~[A~~
8 ~~QUALIFIED VENDOR'S]~~ ~~[AN]~~ APPLICATION FOR CREDENTIALING OR ~~[A QUALIFIED~~
9 ~~VENDOR'S]~~ ~~[AN]~~ APPLICATION FOR RECREDENTIALING, THE DEPARTMENT SHALL GIVE
10 THE ~~[QUALIFIED VENDOR]~~ ~~[APPLICANT]~~ AN OPPORTUNITY TO CORRECT ANY
11 DEFICIENCIES WITH THE APPLICATION THAT LED TO THE INITIAL DENIAL. THE
12 ~~[QUALIFIED VENDOR]~~ ~~[APPLICANT]~~ HAS FOURTEEN BUSINESS DAYS AFTER RECEIVING
13 THE NOTICE OF DENIAL FROM THE DEPARTMENT TO CORRECT THE DEFICIENCIES. IF
14 THE ~~[QUALIFIED VENDOR]~~ ~~[APPLICANT]~~ NOTIFIES THE DEPARTMENT IN WRITING
15 WITHIN THE FOURTEEN-DAY PERIOD THAT THE DEFICIENCIES HAVE BEEN CORRECTED,
16 THE DEPARTMENT SHALL REEVALUATE THE ~~[QUALIFIED VENDOR'S]~~ CREDENTIALING OR
17 RECREDENTIALING APPLICATION.

18 B. IF AFTER ~~[RE-EVALUATION]~~ [REEVALUATION], THE DEPARTMENT DENIES
19 THE ~~[QUALIFIED VENDOR'S]~~ APPLICATION ~~[AND DOES NOT INITIATE A CONTRACT~~
20 ~~WITHIN FOURTEEN BUSINESS DAYS]~~, THE ~~[QUALIFIED VENDOR]~~ ~~[APPLICANT]~~ MAY
21 APPEAL THE DECISION PURSUANT TO ARTICLE 3 OF THIS CHAPTER.

22 [C. ON OR BEFORE JUNE 30, 2027, THE DEPARTMENT SHALL ADOPT RULES TO
23 IMPLEMENT THIS SECTION.]

24 ~~[C.]~~ [D.] FOR THE PURPOSES OF THIS SECTION~~[.]~~ ~~[T~~

25 ~~t.]~~ "CREDENTIALING" MEANS THE PROCESS OF VERIFYING THE
26 QUALIFICATIONS, STANDARDS AND ANY OTHER REQUIREMENTS A VENDOR MUST HAVE TO
27 BE ELIGIBLE TO CONTRACT WITH THE DEPARTMENT TO PROVIDE SERVICES ~~[TO~~
28 ~~RECIPIENTS OF DEPARTMENT PROGRAMS]~~ [PURSUANT TO SECTION 36-557].

Senate Amendments to S.B. 1632

1 ~~[2. "QUALIFIED VENDOR" MEANS A PERSON THAT APPLIES TO ENTER INTO A~~
2 ~~CONTRACT WITH THE DEPARTMENT TO PROVIDE SERVICES TO RECIPIENTS OF~~
3 ~~DEPARTMENT PROGRAMS.]~~

4 Enroll and engross to conform

5 Amend title to conform

CARINE WERNER

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